THE EXISTING COMMON LAWS

Parliament has passed laws governing norms of marriage, divorce and inheritance and people from any faith can voluntarily follow these laws



Illustration by RAJ VERMA

SPECIAL MARRIAGE ACT, 1954

↘ The Act is religion-neutral and anyone from any religion can get married under it. The objective was to offer legal support to inter-faith and inter-caste marriages. No religious formalities are needed; groom must be 21 and bride at least 18 at the time of marriage, and they cannot be blood relations. It also prescribes 10 grounds for divorce, which apply to either spouse. Section 27(1A) contains two more grounds on which the wife can seek the marriage's dissolution. Only the wife can claim permanent alimony and maintenance

FOREIGN MARRIAGE ACT, 1969

↘ This Act governs the marriage between an Indian citizen and a foreigner. It must be conducted before a marriage officer in the presence of three witnesses in any language understood by both participants and the marriage officer

INDIAN SUCCESSION ACT, 1925

↘ This law governs succession and is not applicable to Muslims. However, any person, irrespective of his or her religion, including a Muslim, who gets married under the Special Marriage Act, 1954, will have to follow this law. If both spouses are Hindu, Jain, Sikh or Buddhist, the law doesn't apply to them

PROHIBITION OF CHILD MARRIAGE ACT, 2006

↘ This law prohibits solemnisation of marriage of a boy who is less than 21 years and a girl who is less than 18. In October 2021, the Supreme Court gave a landmark judgment criminalising sex with a child bride. Till then, consummation of marriage with a minor wife was not punishable. This law overrides all personal laws